

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
JUDICIAL DEPARTMENT

W.P. No.14404 of 2019

Muhammad Sana Ullah versus Addl. District Judge, etc.

<i>Sr. No. of order/ Proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
--	--------------------------------------	---

26.09.2019 Mr. Abdul Khaliq Dogar, Advocate for petitioner.

Through this constitutional petition, petitioner (defendant) has called in question orders dated 05.07.2018 and 01.06.2017 passed by respondent No.1/ Additional District Judge, Dunyapur, District Lodhran and respondent No.2/Civil Judge, Dunyapur, District Lodhran, respectively, whereby his application under Order XVI rules 1 and 2 CPC for submission of list of witnesses was concurrently dismissed.

2. The brief facts of the case are that one Ashiq Hussain, predecessor-in-interest of the respondents (plaintiffs) filed a suit for declaration and cancellation of mutation No.121 dated 29.03.1983 sanctioned in favour of the petitioner, claiming therein that the said mutation being against the law and facts is liable to be cancelled.

During the pendency of the suit, petitioner filed the afore-referred application for submission of list of witnesses which was contested by the respondents. The trial court after hearing the arguments of both the parties dismissed the said application vide order dated 01.06.2017; the revision petition filed by the petitioner was also dismissed by the revisional court vide order dated 05.07.2018 on the ground that the petitioner under the provision of Order XVI rule 1 & 2 CPC has to file list of witnesses within seven days after framing of issues but he has failed to do so within stipulated time and filed the

afore-referred application after the lapse of almost 11-months after framing of issues.

3. The learned counsel for the petitioner impugns the afore-referred orders of both the courts below on the ground that it is settled principle of law that matters should be decided on merits and no one should be knocked out on mere technicalities. He adds that the petitioner provided the list of witnesses to his counsel who did not submit the same before the trial court within time and as such the lapse, if any, is not on account of the petitioner; consequently, prays that both the orders passed by the courts below be set aside and he be allowed to produce list of witnesses in the court.

4. After carefully examining the contentions agitated on behalf of the petitioner in the light of relevant provisions of law and perusal of the record of the case, it is observed that the respondents filed the afore-referred suit which was contested by the petitioner by filing of written statement; thereafter, issues were framed and after the evidence of the respondent was recorded and case was fixed for evidence of the petitioner, the application under Order XVI rule 1 & 2 CPC was filed on 04.05.2017 by the petitioner without explaining why such list was not earlier filed and blame was put on his own counsel for not doing the needful despite the fact that petitioner had provided him the list. The trial court dismissed the said application on the ground that the petitioner had failed to show a good cause in not filing the list of witnesses within stipulated time. The petitioner had remained silent for quite time and thereafter filed the afore-referred application with a delay of almost 11-months which was to be filed within 07-days after framing of issues which delay has not been properly explained. The bare reading of Order XVI rule 1 & 2

CPC shows that the list of witnesses is to be presented in Court not later than seven days after framing of issues; the said provision is reproduced as under:

“SUMMONING AND ATTENDANCE OF WITNESSES

1. Summons to attend to give evidence or produce document.—(1) Not later than seven days after the settlement of issues, the parties shall present in Court a certificate of readiness to produce evidence, alongwith a list of witnesses whom they propose to call either to give evidence or to produce documents.

(2) A party shall not be permitted to call witnesses other than those contained in the said list, except with the permission of the Court and after showing good cause for the omission of the said witnesses from the list; and if the Court grants such permission, it shall record reasons for so doing.

(3) On application to the Court or such officer as it appoints in this behalf, the parties may obtain summons for persons whose attendance is required in Court:

Provided”

5. It is seen that the learned revisional court while dismissing the revision petition filed by the petitioner vide order dated 05.07.2018 has rightly observed that no party is permitted to file list of witnesses after the stipulated time given under Order XVI rules 1 & 2 CPC i.e. after seven days of framing of issues except with the permission of court by showing good cause for the said lapse but in the case in hand, the petitioner has failed to show any good cause for doing the needful; hence he is not entitled to any relief in view of the principles laid down by the Hon’ble Supreme Court of Pakistan in a judgment reported as Muhammad Anwar and others v. Mst. Ilyas Begum and others (PLD 2013 SC 255) in which the Hon’ble Supreme Court refused permission to produce list of witnesses by observing that “Where an act is required to be done in a particular manner, it had to be done in that manner alone and such dictate of law could not be termed as a technicality. Although the law favours adjudication the disputes on merits and not on

mere technicalities but also favours the vigilant and not the indolent and he whoever sleeps over his rights has to suffer the consequences. In this context, reference is made to Nazakat Ali vs. WAPDA through Manager and others (2004 SCMR 145).

6. The only ground raised by the petitioner in the afore-referred application was that he gave list of witnesses to his lawyer who did not submit the same within time but this ground in my opinion is not a sufficient or good ground for condoning the delay in filing the list of witnesses, therefore, it appears that the petitioner had been indolent in pursuing his remedy and the learned Additional District Judge has rightly dismissed the revision petition. Besides, this constitutional petition also suffers from laches as orders of courts below dated 05.07.2018 and 01.06.2017 have been challenged after a delay of more than one year and two months of passing of the order of the revisional court. As no illegality, perversity or erroneously exercise of jurisdiction is pointed out in the well-founded impugned orders passed by both the courts below; consequently no exception can be taken to the same in the given circumstances of the case.

7. In view of what has been discussed above, this petition being devoid of merit is **dismissed**.

(MUZAMIL AKHTAR SHABIR)
JUDGE